



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00118 / Swan Ranch Annexation
Date: May 9, 2022

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Related Items:

- Swan Ranch Zone Change (UDC-22-00117)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTH OF HIGH PLAINS ROAD, WEST OF I-25."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That Granite Peak Development, LP, owners of:

A parcel of land situated in the S½ of Section 27, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming, and being more particularly described as follows:

Commencing at the Southwest corner of said Section 27; thence N.62°29'51"E. a distance of 2829.93 feet to a point on the Northerly right of way of High Plains Road, the True Point of Beginning; thence S.57°54'26"E. a distance of 119.89 feet to the Southerly right of way of High Plains Road; thence along said right of way for the following 4 courses; thence N.32°05'47"W. a distance of 349.88 feet; thence N.62°23'36"W. a distance of 7.82 feet to the beginning of a curve to the left; thence 82.75 feet along said curve, having a radius of 190.00 feet, a chord bearing of N.44°37'59"W., a chord distance of 82.10 feet and a central angle of 24°57'11"; thence N.57°06'35"W. a distance of 57.13 feet; thence N.87°59'31"W. a distance of 116.04 feet; thence N.04°00'12"W. a distance of 100.63 feet to the Northerly right of way of Clear Creek Parkway; thence along said right of way for the following 3 courses; thence N.32°53'25"W. a distance of 89.52 feet; thence S.57°06'35"E. a distance of 50.00 feet; thence N.32°53'19"E. a distance of 1271.91 feet; thence S.63°22'45"E. a distance of 1476.42 feet; thence S.49°40'42"E. a distance of 0.19 feet to a point on the Westerly right of way of Interstate 25; thence along said Westerly right of way for the following 7 courses; thence S.39°07'13"W. a distance of 15.46 feet to the beginning of a curve to the right; thence 248.63 feet along said curve, having a radius of 5480.25 feet, a chord bearing of S.40°27'55"W., a chord distance of 248.61 feet and a central angle of 2°35'26"; thence S.47°30'21"W. a distance of 393.78 feet; thence S.52°16'39"W. a distance of 288.45 feet; thence S.60°14'59"W. a distance of 289.78 feet; thence S.68°43'36"W. a distance of 388.41 feet; thence N.81°24'44"W. a distance of 292.31 feet to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned PUD Planned Unit Development by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 9, 2022

STAFF REPORT

FILE: UDC-22-00096: Annexation of a portion of the S½ of Section 27, Township 13 North, Range 67 West of the 6th Principal Meridian

REQUEST: An annexation of 42.5 acres of land

LOCATION: North of High Plains Road between Clear Creek Parkway and I-25

APPLICANT: Prg-Wyo Investors LLC

AGENT: Steil Surveying Services, LLC – Shane Hansen

OWNER: Granite Peak Development, LP

PURPOSE: To allow development of an entertainment facility

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 42.5 acres of land to develop the property with an entertainment use. Currently, the property is part of a much larger ownership parcel under County jurisdiction. The land is currently undeveloped. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County PUD (Swan Ranch) to City PUD (Swan Ranch – ORD 3989).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment	County Swan Ranch PUD	Vacant (possible agriculture)
North	Mixed-use Employment	County Swan Ranch PUD, City Swan Ranch PUD	Vacant (possible agriculture)
South	Mixed-use Employment, Public & Quasi-public	County Swan Ranch PUD	Office, WYDOT facility
East	Mixed-use Employment, Mixed-use Commercial	County A-2	Vacant (likely agriculture)
West	Industrial	County Swan Ranch PUD, City Swan Ranch PUD	Industrial

The property is currently zoned with an industrial-centered PUD zone in the County. The property is concurrently proposed to be annexed and rezoned to the City Swan Ranch PUD zone (ORD 3989). This PUD zone is intended to create an area for specialized commercial and industrial businesses in a rural setting where rail is the predominant reason businesses are locating in the area and where vehicular and pedestrian traffic will be highly impacted by train operations.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the west. Nearby properties are developed with industrial-park like development patterns. The contiguity and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities already exist in the area.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 25% contiguous, along the western edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on April 7, 2022. The public hearing for this annexation is scheduled for May 9, 2022. Twenty (20) business days prior to the

announced public hearing is April 11, 2022. The earliest confirmation of delivery was dated April 8, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage responsible growth. As this annexation is on the edge of the community, any development action needs to take into careful consideration how to extend infrastructure; however, utilities and streets have largely already been built to practical extents.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with industrial uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits.

STAFF REVIEW:

Through the review process, the following comments were received:

- Water main extension

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to this property.

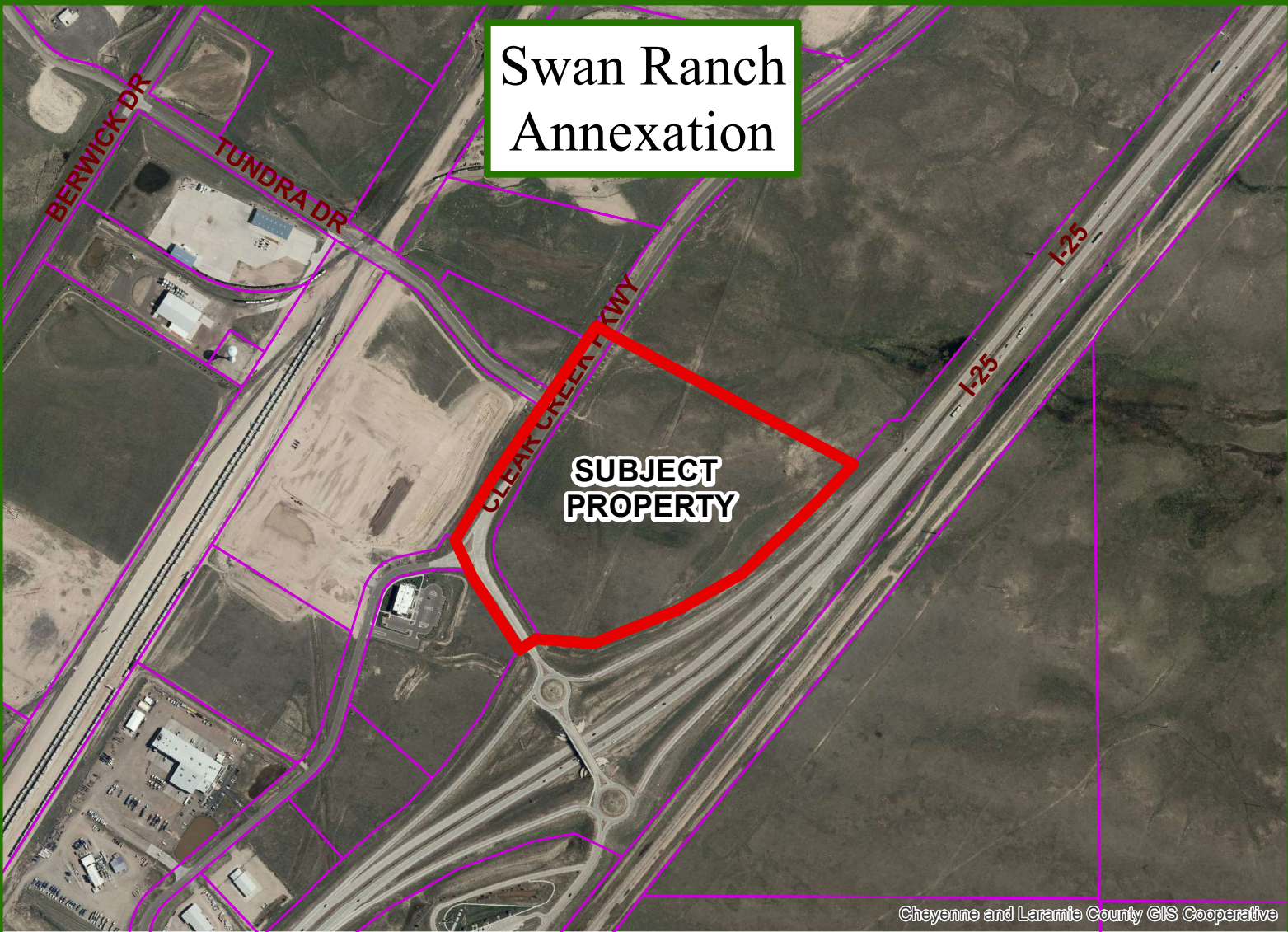
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

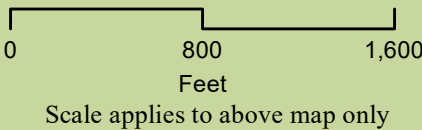
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

Swan Ranch Annexation



Application Number
Annexation
UDC-22-00118

Attachment 1

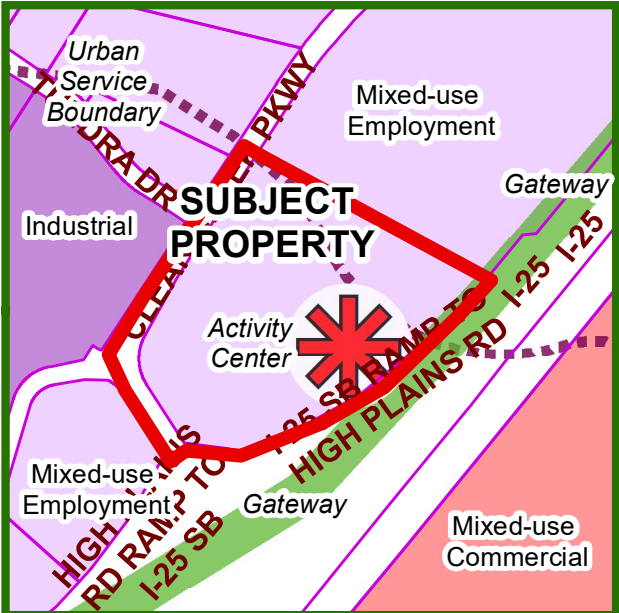


Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **29 March 2022, 10:39AM**
Receipt number: **18**
Related form version: **10**

General Information

Applicant Name: **PRG-WYO INVESTORS LLC**

Applicant Address: **2400 DUNN AVE**

Applicant City: **CHEYENNE**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **3077788236**

Applicant Email: **Rande@poupirt.com**

Representative Name: **SHANE HANSEN**

Representative Address: **1102 W. 19TH ST.**

Representative City: **CHEYENNE**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **3076347273**

Representative Email: **shansen@steilsurvey.com**

Owner Name: **GRANITE PEAK DEVELOPMENT, LP**

Owner Address: **1300 Venture Way**

Owner City: **CASPER**

Owner State:	WY
Owner Zip Code:	82609
Owner Phone:	3074727275
Owner Email:	jstephenson@thegranitepeakgroup.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	GRANITE PEAK letter-of-authorization.pdf
Project Location (Street Address or General Location):	UNPLATTED PORTION OF SWAN RANCH, S27-T13N-R67W
Assessor's Parcel ID number(s)	13672730100300
Total Project Area	35 ACRES
Current Zoning	PUD COUNTY
Proposed Zoning	PUD - Proposed

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	UNPLATTED
Formal Annexation Petition	SWAN RANCH GPD annexation-petition (1).pdf
Board of Public Utilities Clearance Form	Swan Rance GPD annexation-bopu-clearance.pdf
Annexation Map	22128 ANNEX PAPER (1).pdf

Signature / Certification

Applicant Signature	Name of signatory: SHANE HANSEN  Uploaded signature image: HANSEN SIGNATURE.jpg
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Please enter an email address for an email receipt.

shansen@steilsurvey.com



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**
AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT GRANITE PEAK DEVELOPMENT, LP,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne, Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

A parcel of Land being situated in the S½ of Section 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, and being more particularly described as follows:

Commencing at the Southwest corner of said Section 27; thence N.62°29'51"E. a distance of 2829.93 feet to a point on the Northerly right of way of High Plains Road, the True Point of Beginning; thence S.57°54'26"E. a distance of 119.89 feet to the Southerly right of way of High Plains Road; thence along said right of way for the following 4 courses; thence N.32°05'47"W. a distance of 349.88 feet; thence N.62°23'36"W. a distance of 7.82 feet to the beginning of a curve to the left; thence 82.75 feet along said curve, having a radius of 190.00 feet, a chord bearing of N.44°37'59"W., a chord distance of 82.10 feet and a central angle of 24°57'11"; thence N.57°06'35"W. a distance of 57.13 feet; thence N.87°59'31"W. a distance of 116.04 feet; thence N.04°00'12"W. a distance of 100.63 feet to the Northerly right of way of Clear Creek Parkway; thence along said right of way for the following 3 courses; thence N.32°53'25"W. a distance of 89.52 feet; thence S.57°06'35"E. a distance of 50.00 feet; thence N.32°53'19"E. a distance of 1271.91 feet; thence S.63°22'45"E. a distance of 1476.42 feet; thence S.49°40'42"E. a distance of 0.19 feet to a point on the Westerly right of way of Interstate 25; thence along said Westerly right of way for the following 7 courses; thence S.39°07'13"W. a distance of 15.46 feet to the beginning of a curve to the right; thence 248.63 feet along said curve, having a radius of 5480.25 feet, a chord bearing of S.40°27'55"W., a chord distance of 248.61 feet and a central angle of 2°35'26"; thence S.47°30'21"W. a distance of 393.78 feet; thence S.52°16'39"W. a distance of 288.45 feet; thence S.60°14'59"W. a distance of 289.78 feet; thence S.68°43'36"W. a distance of 388.41 feet; thence N.81°24'44"W. a distance of 292.31 feet to the point of beginning.

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

	JOSHUA JAMISON - MANAGER	29-March-2022
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:
